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Case Number: 23TRCV02836 Hearing Date: July 27, 2026 Dept: P

Superior Court
of California

County of Los
Angeles

Southwest
District

Torrance Dept. P

MARESA

LEWIS; ISAAC EGCELSTON; ENRII HOWEL,

Plaintiffs

Case No.:

24TRCV02836

vs.

[Tentative]

RULING RE:

DEMURRER

TO PLAINTIFFS' FAC AND MOTION TO STRIKE

HILTON

HOTELS CORPORATION; HILTON WORLDWIDE, INC.; UHG LAX PROP LLC; DOUBLETREE BY
HILTON HOTEL LAX – EL SEGUNDO; CHARU GOYAL; and DOES 1-20, inclusive,

Defendants.

Hearing

Date: July 27, 2026

Department

P, Judge David K. Reinert

Demurrer

to Plaintiffs' FAC and Motion to Strike

Moving

Party: Defendants

UHG LAX PROP LLC, Doubletree by Hilton Hotel LAX – El Segundo, and Charu Goyal

Responding Party: Plaintiffs Maresa Lewis, Isaac

Eggelston, and Enrii Howel

RULING

The court

considered the moving papers and opposition. Moving Defendants' Demurrer to
Plaintiffs' FAC is SUSTAINED in its entirety without leave to amend. Moving
Defendants' Motion to Strike is GRANTED in its entirety without leave to amend.

PROCEDURAL BACKGROUND

On August 23, 2024, Plaintiffs Maresa Lewis, Isaac Eggelston, and Enrii
Howel (collectively, "Plaintiffs") filed a complaint against Defendants Hilton
Hotels Corporation, Hilton Worldwide, Inc., UHG LAX PROP LLC, Doubletree by
Hilton Hotel LAX – El Segundo, Charu Goyal, and DOES 1 through 20, inclusive
(collectively, "Defendants"), alleging seven causes of action for: (1) Battery;
(2) Negligence; (3) Intentional Infliction of Emotional Distress; (4)
Fraudulent Concealment; (5) Private Nuisance; (6) Public Nuisance; and (7)
Breach of Contract. On May 8, 2025, Defendants Hilton Hotels Corporation and
Hilton Worldwide, Inc. were dismissed without prejudice.

On February 17, 2026, Defendants UHG LAX PROP LLC, Doubletree by Hilton Hotel LAX – El Segundo, and Charu Goyal (“Moving Defendants”) filed a demurrer to Plaintiffs’ complaint and a motion to strike. On March 16, 2026, the court sustained Moving Defendants’ demurrer in its entirety with leave to amend each cause of action except Plaintiffs’ fifth cause of action, and granted Moving Defendants’ motion to strike in its entirety with leave to amend.

On April 20, 2026, Plaintiffs filed a first amended complaint (“FAC”) against Defendants, alleging six causes of action for: (1) Battery; (2) Negligence; (3) Intentional Infliction of Emotional Distress; (4) Fraudulent Concealment; (5) Public Nuisance; and (6) Breach of Contract.

On June 23, 2026, Moving Defendants filed the instant demurrer and motion to strike. On July 16, 2026, Plaintiffs filed an opposition.

FACTUAL BACKGROUND

Plaintiffs

allege that on August 23, 2022, Plaintiffs checked into the Doubletree by Hilton Hotel LAX – El Segundo (the “Subject Hotel”), and were provided Room 409. (FAC, ¶ 16.) Plaintiffs allege that the next day, they awoke with severe itching and bedbug bites across their bodies. (FAC, ¶ 17.) Plaintiffs allege that after they discovered that the Subject Hotel was infested with bedbugs, they informed the Subject Hotel’s front desk clerk of the infestation and were offered a new room. (FAC, ¶¶ 18-19.) Plaintiffs allege that they were denied a refund. (FAC, ¶ 19.)

Next,

Plaintiffs allege that they each subsequently sought medical treatment as a result of the bedbug bites. (FAC, ¶¶ 20-21.) Plaintiffs allege that they have “incurred various expenses, including medical costs, the cost of the hotel room, the replacement cost of their luggage and clothing, along with other belongings exposed to the infestation at the hotel, and other costs.” (FAC, ¶ 22.) Plaintiffs allege that Defendants had knowledge of the prior bedbug infestation in Plaintiffs’ room and failed to eradicate the infestation. (FAC, ¶ 24.) Plaintiffs allege that Defendants had knowledge of “several guest reviews regarding bedbugs found at the Subject Hotel.” (FAC, ¶ 28.)

LEGAL STANDARD

A party may demur to a complaint on the grounds that it “does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc. Section 430.10(e).) A party may also demur to a pleading on the grounds that the pleading is uncertain. (Code Civ. Proc. Section 430.10(f).) A demurrer tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) A special demurrer for uncertainty under Code of Civil Procedure section 430.10(f) is disfavored and will only be sustained where the pleading is so bad that defendant or plaintiff cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her. (Khoury v. Maly's of Calif., Inc. (1993) 14 Cal.App.4th 612, 616.)

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When considering demurrers, courts accept all well pleaded facts as true. (Fox v. JAMDAT Mobile, Inc. (2010) 185 Cal.App.4th 1068, 1078.) “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed.” (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn, *supra*, 147 Cal.App.4th at 747.) On demurrer, a court does “not accept contentions, deductions or conclusions of fact or law.” (Simonyan v. Nationwide Insurance Company of America (2022) 78 Cal.App.5th 889, 895.)

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Although courts construe pleadings liberally, sufficient facts must be alleged to support the allegations pled to survive a demurrer. (Rakestraw v. California Physicians' Serv. (2000) 81 Cal.App.4th 39, 43.) Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is on the party who filed the pleading subject to demurrer to show the court that a pleading can be amended successfully. (Ibid.)

DISCUSSION

Moving Party's Argument

Moving Defendants demur to Plaintiffs' first, third, fourth, fifth, and sixth causes of action on the grounds that Plaintiffs have alleged the same operative facts in the FAC which were alleged in the original complaint and the same defects remain. Moving Defendants argue that Plaintiffs have failed to sufficiently allege facts showing that Moving Defendants had actual knowledge of the bedbug infestation in Plaintiffs' hotel room or that Moving Defendants had the intent to subject Plaintiffs to the bedbugs. Moving Defendants argue that the FAC still does not set forth the terms of the alleged contract or plead the alleged contract by its legal effect, and Plaintiffs have not attached a copy of the contract to the FAC.

Moving Defendants move to strike Plaintiffs' request for punitive damages and supporting allegations and Plaintiffs' request for attorney's fees on the grounds that the FAC contains only conclusory allegations regarding Moving Defendants' conduct and because Plaintiffs have not sufficiently alleged a basis for attorney's fees. As an alternative to the court granting the instant motion without leave to amend, Moving Defendants request that the court order Plaintiffs to pay Moving Defendants' expenses in bringing the instant motion as a condition of leave to amend.

Opposing Party's Argument

Plaintiffs argue that they have alleged sufficient facts to state causes of action for battery, intentional infliction of emotional distress, fraudulent concealment, public nuisance, and breach of contract. Plaintiffs argue that they have sufficiently alleged intent by Moving Defendants due to Moving Defendants recklessly failing to warn Plaintiffs of the bedbug infestation despite Moving Defendants' prior knowledge of the infestation. Plaintiffs argue that the FAC sufficiently alleges that Moving Defendants had knowledge of the bedbug infestation in Plaintiffs' hotel room due to prior similar incidents.

Plaintiffs argue that punitive damages are warranted here because the FAC alleges that Moving Defendants consciously exposed Plaintiffs to a known safety risk.

Merits of the Motion

A.

Meet and Confer Requirements

Before filing a demurrer, the demurring party is required to meet and confer "in person, by telephone, or by video conference with the party who filed the pleading that is subject to the demurrer for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer." (Code Civ. Proc. Section 430.41(a).)

Here, Moving Defendants' counsel declares that on April 20, 2026, she called Plaintiffs' counsel to meet and confer and sent an email to Plaintiffs' counsel requesting that the parties meet and confer by telephone. (Pavlich Decl., ¶ 4.) Moving Defendants' counsel declares that Plaintiffs have not responded to any of Moving Defendants' telephone calls or emails. (Pavlich Decl., ¶ 4.)

Therefore, the court finds that the meet and confer requirements have not been satisfied. However, the court will still discuss the merits of Defendants' demurrer because a failure to comply with the meet and confer requirements alone does not defeat a demurrer. (Code Civ. Proc. Section 430.41(a)(4).)

B.

First Cause of Action: Battery

"The essential elements of a cause of action for battery are: (1) defendant touched plaintiff, or caused plaintiff to be touched, with the intent to harm or offend plaintiff; (2) plaintiff did not consent to the touching; (3) plaintiff was harmed or offended by defendant's conduct; and (4) a reasonable person in plaintiff's position would have been offended by the touching." (So v. Shin (2013), 212 Cal.App.4th 652, 668-669.)

Moving Defendants argue that Plaintiffs' first cause of action continues to fail to state facts to show that Moving Defendants had the intent to cause Plaintiffs to be touched by the bedbugs. The court agrees. Plaintiffs have not alleged that Moving Defendants intentionally placed the bedbugs in Plaintiffs' hotel room so that Plaintiffs would be subjected to a harmful or offensive contact. The court finds that the FAC continues to contain conclusory allegations regarding Moving Defendants' intent by alleging that Moving

Defendants “knowingly assigned Plaintiffs to Room 409 despite prior notice of active bedbug activity in said room and/or immediately adjacent rooms, deliberately withheld said information from Plaintiffs, and intended that Plaintiffs sleep in said room without knowledge of the infestation.” (FAC, ¶ 52.)

The court finds that at most, Plaintiffs’ allegations support a negligence cause of action rather than an intentional tort cause of action. Further, as the court will discuss below, Plaintiffs have failed to sufficiently allege that Moving Defendants had knowledge of a bedbug infestation in Plaintiffs’ hotel room. Therefore, the court concludes that Plaintiffs have failed to sufficiently state their first cause of action for battery.

Accordingly, Moving Defendants’ Demurrer to Plaintiffs’ first cause of action is SUSTAINED.

C.

Third Cause of Action: Intentional Infliction of Emotional Distress

“The elements of a prima facie case for the tort of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff’s suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant’s outrageous conduct. Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community.” (Wilson v. Hynek (2012) 207 Cal.App.4th 999, 1009, citation and ellipses omitted.)

Additionally, “it is not enough that the conduct be intentional and outrageous. It must be conduct directed at the plaintiff or occur in the presence of a plaintiff of whom the defendant is aware.” (Potter v. Firestone Tire & Rubber Co. (1993) 6 Cal.4th 965, 1002, citing Christensen v. Superior Court (1991) 54 Cal.3d 868, 903.)

Again, Moving Defendants argue that Plaintiffs have failed to cure the defects previously identified by the court in Plaintiffs’ third cause of action. Here, Plaintiffs allege that Defendants “knew at the time Plaintiffs presented for check in that Plaintiffs were being assigned to a room with known bedbug activity, and nevertheless deliberately concealed said fact from

Plaintiffs, directed Plaintiffs to occupy said room, and accepted payment for same.” (FAC, ¶ 77.)

The court finds that the FAC fails to allege that Moving Defendants intentionally placed the bedbugs in Plaintiffs’ hotel room or otherwise directed conduct at Plaintiffs. The FAC contains only conclusory allegations stating that Moving Defendants’ conduct was “directed specifically at Plaintiffs.” (FAC, ¶ 78.) Plaintiffs have not alleged sufficient facts showing that Moving Defendants acted with intent or reckless disregard. Instead, Plaintiffs repeatedly allege that Moving Defendants had prior knowledge of the bedbug infestation in Plaintiffs’ hotel room and yet “directed Plaintiffs to occupy said room.” (FAC, ¶ 77.) The court finds that Plaintiffs’ allegation that Moving Defendants’ “actions were done with the intent to cause serious emotional distress or with reckless disregard of the probability of causing Plaintiffs serious emotional distress” is conclusory and lacking factual support. (FAC, ¶ 85.) As the court will discuss below, Plaintiffs have not sufficiently alleged a factual basis for Moving Defendants’ prior knowledge of the bedbug infestation in Plaintiffs’ hotel room.

Accordingly, Moving Defendants’ Demurrer to Plaintiffs’ third cause of action is SUSTAINED.

D.

Fourth Cause of Action: Fraudulent Concealment

“The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact to the plaintiff; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would not have acted as he or she did if he or she had known of the concealed or suppressed fact; and (5) plaintiff sustained damage as a result of the concealment or suppression of the fact.” (Hambrick v. Healthcare Partners Medical Group, Inc. (2015) 238 Cal.App.4th 124, 162, citing Graham v. Bank of America, N.A. (2014), 226 Cal.App.4th 594, 606.)

Moving Defendants argue that Plaintiffs have failed to allege specific facts showing that Moving Defendants had knowledge of bedbugs within Plaintiffs’ hotel room, and the court agrees. Plaintiffs allege that Moving Defendants “had knowledge and were on notice of the existing bedbug infestation at the Subject Hotel as evidenced by the extensive online reviews by other

prior guests which indicates presence of said infestation and conditions present at the Subject Hotel.” (FAC, ¶ 96.) However, Plaintiffs have not provided details within the FAC regarding the online reviews allegedly posted by previous guests, outside of generally alleging that “[i]n their online reviews and complaints, many guests state that they woke up to bedbug bites.” (FAC, ¶ 28.) Additionally, online reviews from previous hotel guests do not provide a sufficient factual basis from which to impute knowledge. Therefore, the court finds that Plaintiffs’ allegations that Moving Defendants had knowledge of the alleged bedbug infestation in Plaintiffs’ hotel room are conclusory.

Accordingly, Moving Defendants’ Demurrer to Plaintiffs’ fourth cause of action is SUSTAINED.

E.

Fifth Cause of Action: Public Nuisance

“Anything which is injurious to health...or is indecent, or offensive to the senses, or an obstruction to the free use of property, so as to interfere with the comfortable enjoyment of life or property...is a nuisance.” (Civil Code Section 3479.) “A public nuisance is one which affects at the same time an entire community or neighborhood, or any considerable number of persons, although the extent of the annoyance or damage inflicted upon individuals may be unequal.” (Civil Code Section 3480.) “To qualify, and thus be enjoined, the interference [with collective social interests] must be both substantial and unreasonable.” (Birke v. Oakwood Worldwide (2009), 169 Cal. App. 4th 1540, 1547, emphasis in original.)

Here, Moving Defendants argue that Plaintiffs have failed to allege specific facts showing that the bedbug infestation affected a large community or interfered with the rights of the general public, and Plaintiffs have failed to allege that they were unable to exercise their rights.

Plaintiffs allege that “Defendants had received multiple complaints of bedbug bites, observed bedbug activity in more than one room, and/or caused or permitted the infestation to remain and spread within the Subject Hotel, thereby creating a condition injurious to the health and safety of hotel guests and the public.” (FAC, ¶ 116.) Plaintiffs further allege that they “suffered harm different in kind and degree from the general public in that Plaintiffs actually occupied the infested room, sustaining bedbug bites to their bodies, required

medical treatment, incurred out of pocket expenses, and sustained damage to personal property exposed to the infestation.” (FAC, ¶ 118.)

The court finds that Plaintiffs have failed to allege sufficient facts to support their conclusory allegations that Moving Defendants had “observed” bedbug activity in more than one room at the Subject Hotel or that other hotel guests had been impacted by the alleged infestation. Therefore, the court finds that the FAC continues to speculate regarding any impact on the community, and Plaintiffs fail to specifically allege how the community or public at large has been affected by Moving Defendants’ alleged conduct.

Accordingly, Moving Defendants’ Demurrer to Plaintiffs’ fifth cause of action is SUSTAINED.

F.

Sixth Cause of Action: Breach of Contract

To state a cause of action for breach of contract, Plaintiff must be able to establish “(1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff.” (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821.)

If a breach of contract claim “is based on alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written agreement must be attached and incorporated by reference.” (Harris v. Rudin, Richman & Appel (1999) 74 Cal.App.4th 299, 307.)

Here, Moving Defendants argue that Plaintiffs have failed to set forth the terms of the alleged contract verbatim and have not attached a copy of the alleged contract to the FAC. Plaintiffs only allege that on August 23, 2022, “Plaintiffs and Defendants entered into a written contract for hotel lodging at the Subject Hotel, including the rental of Room 409 for consideration paid by Plaintiffs,” and “[t]he written agreement, as reflected in Plaintiffs’ reservation confirmation, receipt, and/or hotel booking terms, provided in substance that Defendants would furnish Plaintiffs paid lodging in a guest room at the Subject Hotel for the agreed rental price.” (FAC, ¶¶ 121-122.)

As Moving Defendants point out, Plaintiffs have not attached a copy of any written agreement between the parties, nor have Plaintiffs stated the

specific terms of the parties' alleged written agreement verbatim in the body of the FAC. Therefore, Plaintiffs' allegations are insufficient to state a cause of action for breach of contract.

Accordingly, Moving Defendants' Demurrer to Plaintiffs' sixth cause of action is SUSTAINED.

G.

Motion to Strike

The court may, upon motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc. Section 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc. Section 436(b).) The grounds for a motion to strike are that the pleading has irrelevant, false, or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc. Section 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc. Section 437(a).)

Here, Moving Defendants move to strike Plaintiffs' request for punitive damages and supporting allegations and Plaintiffs' request for attorney's fees on the grounds that the FAC contains only conclusory allegations regarding Moving Defendants' conduct and because Plaintiffs have not sufficiently alleged a basis for attorney's fees. As an alternative to the court granting the instant motion without leave to amend, Moving Defendants request that the court order Plaintiffs to pay Moving Defendants' expenses in bringing the instant motion as a condition of leave to amend.

Attorney's Fees

Moving Defendants move to strike Plaintiffs' third prayer for relief because the FAC still fails to plead the terms of the parties' alleged written contract and Plaintiffs have failed to attach a copy of the alleged contract to the FAC.

"Except as attorney's fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties." (Code Civ. Proc. Section

1021.)

The court finds that the FAC does not allege statutory support for an award of attorney's fees, and the FAC only alleges the existence of a written contract between the parties without setting forth the terms of the agreement verbatim or attaching a copy of the parties' alleged written agreement to the FAC. Because Plaintiffs have failed to adequately allege the existence of a valid written contract between the parties and as Plaintiffs have failed to cite to a relevant statute to support Plaintiffs' request for attorney's fees, the court concludes that Plaintiffs have not alleged a basis from which to recover attorney's fees.

Accordingly, Moving Defendants' Motion to Strike is GRANTED as to Plaintiffs' request for attorney's fees.

Punitive Damages

Moving Defendants also move to strike Plaintiffs' second prayer for punitive damages and the supporting allegations in paragraphs 58, 75, 89, and 111 of the FAC.

In order to state a prima facie claim for punitive damages, a complaint must set forth the elements as stated in the general punitive damage statute, Civil Code Section 3294. (*College Hospital, Inc. v. Superior Court* (1994) 8 Cal.4th 704, 721.)² These statutory elements include allegations that the defendant has been guilty of oppression, fraud or malice. (Civ. Code, Section 3294(a).)³

"Malice is defined in the statute as conduct intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (*College Hospital, Inc.*, supra, 8 Cal.4th at 725.)⁴ "A conscious disregard of the safety of others may constitute malice within the meaning of section 3294 of the Civil Code."⁵ In order to justify an award of punitive damages on this basis, the plaintiff must establish that the defendant was aware of the probable dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences."⁶ (*Taylor v. Superior Court* (1979) 24 Cal.3d 890, 895-896.)⁷

"As amended to include [despicable], the statute plainly indicates that

absent an intent to injure the plaintiff, 'malice' requires more than a 'willful and conscious' disregard of the plaintiffs' interests. The additional component of 'despicable conduct' must be found." (College Hospital, Inc., supra, 8 Cal.4th at 725.) The statute's reference to despicable conduct represents a "new substantive limitation on punitive damage awards." (Ibid.) Despicable conduct is "conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people. Such conduct has been described as 'having the character of outrage frequently associated with crime.'" (Tomaselli v. Transamerica Ins. Co. (1994) 25 Cal.App.4th 1269, 1287.)

"In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff. [Citations.] In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth. [Citations.] In ruling on a motion to strike, courts do not read allegations in isolation. [Citation.]" (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.)

Moving Defendants argue that Plaintiffs fail to allege specific facts regarding Moving Defendants' conduct to justify the imposition of punitive damages. The court agrees. As previously discussed by the court, the FAC fails to allege sufficient facts indicating that Moving Defendants had knowledge of the bedbug infestation in Plaintiffs' hotel room, and thus Plaintiffs have failed to allege facts showing any intentional conduct by Moving Defendants. Therefore, the court concludes that Plaintiffs have not sufficiently alleged that Moving Defendants' conduct was malicious, willful, or oppressive for the purposes of recovering punitive damages.

Accordingly, Moving Defendants' Motion to Strike is GRANTED as to Plaintiffs' request for punitive damages and supporting allegations.

Therefore, Moving Defendants' Motion to Strike is GRANTED in its entirety.

H.

Leave to Amend

Leave to amend must be allowed where there is a reasonable possibility of

successful amendment. (Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 ("When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.")) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

The court finds that Plaintiffs have failed to cure any of the defects identified by the court regarding Plaintiffs' original complaint. Therefore, the court finds that there is no reasonable possibility of successful amendment by Plaintiffs.

Accordingly, the court DENIES leave to amend.

CONCLUSION

Based on the foregoing, Moving Defendants' Demurrer to Plaintiffs' FAC is SUSTAINED in its entirety without leave to amend. Moving Defendants' Motion to Strike is GRANTED in its entirety without leave to amend.

Moving party is ordered to give notice of ruling.